Explanatory note to the *Aid to Negotiations* by the Chair of the Intergovernmental Negotiating Committee (INC) to develop an international legally binding instrument on plastic pollution, including in the marine environment

8 August 2026

Dear Members of the Committee,

As I explained during the closing of the informal in-person meeting of Heads of Delegation (HODs) to the INC in Nairobi from 30 June to 3 July 2026, I am pleased to share the ***Aid to Negotiations***. The document has been prepared under my authority, with the support of the Secretariat. It is an informal reference document and does not constitute a negotiated or agreed text. Its purpose is to help in our forthcoming discussions and to contribute to structuring our engagement in the next phase of our efforts as we move toward the fourth part of the fifth session of the INC (INC-5.4).

This document represents my best effort to present a balanced approach to the various elements of our work, reflecting the level of progress we have achieved. It brings together a range of issues that have already been considered and discussed by Members of the Committee at past INC sessions. It does not prejudge the positions of Members or limit Members' ability to continue raising issues they consider important and exploring possible solutions as our work continues.

In addition, I have included some considerations in this introductory section that may be useful for Members in their work to provide more clarity in some of the areas of the document.

I would also like to recall that, in our last informal in-person HODs meeting in Nairobi, a number of ideas were shared that offered possible avenues for finding bridging solutions. In line with the approach I explained in the preparatory notes to that meeting, I have not attempted to insert those ideas into this first iteration of the document.

The immediate purpose of this document is to support the next informal in-person HODs meeting, scheduled to take place from 27 to 30 September 2026 at the United Nations Conference Centre in Bangkok, Thailand. I hope that Members will use the ***Aid to Negotiations*** during that meeting to consolidate areas of convergence, advance consideration of outstanding issues and begin identifying possible bridging approaches and solutions.

I encourage all Members to continue deepening your understanding of each other's views and proposals, as we will need to move towards solutions that I hope I will be able to identify through your exchanges and bring for your consideration in the next iteration of this ***Aid to Negotiations***, to be prepared after the informal meeting in Bangkok.

In developing the ***Aid to Negotiations*** with the support of the Secretariat, I have drawn from and been informed by the following past texts released in this process, as well as the discussions in past INC sessions, including in the Contact Groups:

- Zero draft text of the international legally binding instrument on plastic pollution, including in the marine environment (4 September 2023)
- Compilation of draft text of the international legally binding instrument on plastic pollution, including in the marine environment (09 July 2024)
- Non-Paper containing the draft text of the Chair of the Committee (29 November 2024)
- Chair's text (1 December 2024)
- Chair's draft text proposal (13 August 2025)
- Chair's revised text proposal (15 August 2025)

I have attempted to identify and signal areas of divergence in the document to ensure that the text presented is as reflective as possible of the progress made during INC sessions. At the same time, I have sought to keep the text as readable and easy to navigate as possible, presenting the different ideas and sections in an orderly and structured manner.

The brackets enclosing the document indicate that the text as a whole remains open for Members' deliberations. Brackets within the document are used to help reflect the current state of discussions, including language that remained bracketed in earlier texts, where views remain divergent or where further consideration by Members is needed. Language without internal brackets should not be understood as agreed or as indicating any particular level of support.

Considerations for further discussion

Some topics, such as Scope, still require considerable discussion and consultation. For this reason, I have opted to include a descriptive placeholder in the body of the ***Aid to Negotiations*** rather than including specific language. I intend to continue my consultations on this issue during the Bangkok meeting, with the aim of translating the views of Members into a text, acknowledging any divergent perspectives.

Regarding plastic products, there is an emerging common understanding to consider a few elements as part of the discussion. However, a number of key policy, legal and institutional questions remain to be resolved and require further consideration among Members. I hope that the brackets in the text will help identify those areas with a higher level of convergence, and signal other topics that might require further consideration.

Members may wish to revisit discussions around some specific articles from the perspective of the role such provisions will or can play in the broader architecture of the instrument and its implementation. For example, the article on information exchange can be relevant to a number of other articles but could benefit from a deeper understanding of how those interconnections can be conducive to a successful delivery of the purposes of the instrument. The same functional logic could inform the question on the establishment of any Subsidiary Bodies in the text of the instrument.

I would highlight a similar observation regarding some proposals to merge some articles. In my view, we remain bound by our mandate as expressed in UNEA Resolution 5/14, and for this reason the consideration of merging articles might be better understood in terms of whether it

contributes to a more effective implementation of the instrument and its objectives, as well as whether it contributes to the clarity of its provisions.

Members have also discussed the need for the instrument to clarify its relationship with existing international legal frameworks, and this could be an opportunity for specific provisions to be added to the instrument. However, the framing of such provisions, if included, still requires further analysis and consideration by Members. Different options have been explored on the appropriate placement and content for this purpose, including whether they should be reflected through a dedicated article, elsewhere in the instrument (such as in any article on Principles and Approaches), in the Preamble, or in some combination of these. Members may wish to consider continuing their exchanges to achieve a solution to this issue.

Discussions on the specific functions of the Conference of the Parties, as well as how decisions are made under the instrument, remain an area of significant divergence. Members also continue to consider what should be included in the text at the time of adoption and what could be decided later by the Conference of the Parties, such as by being included in the rules of procedure of the Conference of the Parties.

For this reason, in this document the article on the Conference of the Parties has been drawn from previous texts, but brackets have been placed around two paragraphs related to decision-making under the instrument. This is in recognition of the ongoing and developing discussions among Members, as well as in the context of the consultations I conducted with Members in Nairobi.

Of further note is that decision-making on substantive issues in relation to the implementation of the instrument generally differs from the approach to decision-making regarding amendments to the instrument. Many other multilateral environmental agreements have made this distinction and typically procedures to amend the instrument are included in the body of the instrument itself.

In reading this ***Aid to Negotiations***, I encourage all Members to consider the explanations I have provided on certain elements of the document, while also giving full consideration to all its aspects to ensure a balanced and comprehensive approach.

As mentioned in my fourth letter, the instrument should also be developed taking into account the work that will be mandated for the interim period that extends from its adoption to the first meeting of the Conference of the Parties. In this context, it is important to start considering the possible contents of the draft Resolutions of the Diplomatic Conference of Plenipotentiaries, as they can form part of a larger package.

Looking ahead

After the informal meeting in Bangkok, it is my intention to prepare, with the support of the Secretariat, a second iteration of this document. This second iteration will be informed by progress made during the discussions that take place in Bangkok, as well as by previous exchanges among Members, including in our last meeting in Nairobi. I hope that this will allow

us to solve some of the outstanding issues and arrive at INC.5-4 with a more streamlined text for consideration, as well as a limited number of issues requiring further work.

With this in mind, Members are encouraged to view the ***Aid to Negotiations*** as a living document that will be shaped by their deliberations as we move toward INC-5.4.

I remain committed to working together with all of you toward our shared vision of a future world with zero plastic pollution.

Julio Cordano

INC Chair

[The Parties to this Convention,

Recalling resolution 5/14 adopted by the United Nations Environment Assembly on 2 March 2022, in which the Environment Assembly requested the Executive Director of the United Nations Environment Programme to convene an intergovernmental negotiating committee to develop an international legally binding instrument on plastic pollution, including in the marine environment,

Noting with concern that the high and rapidly increasing levels of plastic pollution, including in the marine environment, represent a serious environmental and human health problem, negatively impacting the environmental, social and economic dimensions of sustainable development,

Acknowledging the important role played by plastics in human society, and stressing the importance of establishing effective mechanisms throughout the full life cycle of plastics to promote plastics circularity and prevent leakage of plastics into the environment,

Reaffirming the importance of promoting sustainable production and consumption of plastics through, among other things, product design and environmentally sound waste management, including through resource efficiency and circular economy approaches,

[*Recognizing* that current levels of production and consumption of plastics are unsustainable, exceed current waste management capacities and are projected to increase further, thereby necessitating a coordinated global response to halt and reverse such trends,]

Recognizing the significant contribution made by all workers in the plastics sector, especially those in informal and cooperative settings and in small and medium-sized enterprises, including waste pickers, to the collection, sorting and recycling of plastics in many countries,

Underlining the importance of science-based decision-making and the contributions of scientific, economic, social and technical information, including traditional knowledge and the knowledges, sciences and practices of Indigenous Peoples and local communities, and local knowledge systems, for the implementation of measures to reduce plastic pollution and to improve understanding of the full life cycle of plastics and of the global impact of plastic pollution, including its risks to human health, and measures to address them,

Recalling the Universal Declaration of Human Rights, the Declaration on the Right to Development, the United Nations Declaration on the Rights of Indigenous Peoples, the United Nations Declaration on the Rights of Peasants and Other People Working in Rural Areas, and General Assembly resolution 76/300 on the human right to a clean, healthy and sustainable environment,

Emphasizing that nothing in this Convention is intended to affect the rights and obligations of any Party deriving from any existing international agreement,

Understanding that the above recital is not intended to create a hierarchy between this Convention and other international instruments,

Have agreed as follows:

ARTICLE 1

OBJECTIVE

The objective of this Convention is to protect [human health and] the environment from plastic pollution, including in the marine environment [based on a comprehensive approach that addresses the full life cycle of plastics].

PLACEHOLDER: SCOPE

The approach to scope remains under consideration. Previous discussions have reflected different approaches. The options below are included without prejudice to the final approach to scope:

1. a standalone article on scope;
2. scope reflected through the operative provisions of the Convention;
3. a standalone article accompanied by a negative list of elements; or
4. a combination of these approaches.

ARTICLE 2

PRINCIPLES AND APPROACHES

1. In their actions to achieve the objective of this Convention, the Parties shall be guided, [inter alia,] by the following principles and approaches:

   (a) The principles contained in the Charter of the United Nations [, including the equal rights and self-determination of peoples, the sovereign equality and independence of all Member States, non-interference in matters which are essentially within the domestic jurisdiction, and universal respect for human rights and fundamental freedoms for all];

   (b) The principles contained in the Rio Declaration on Environment and Development[, including common but differentiated responsibilities, sustainable development, the precautionary approach, the sovereign right of states to exploit their own resources pursuant to their own environmental and developmental policies, the polluter pays principle, and the responsibility to ensure that activities within their jurisdiction or control do not cause damage to the environment of other States or of areas beyond national jurisdiction];

   (c) [Measures taken to combat plastic pollution should not be applied in a manner which would constitute a means of arbitrary or unjustifiable discrimination between countries where the same conditions prevail, or a disguised restriction on international trade];

   (d) The special circumstances of small island developing States, least developed countries, [landlocked developing countries,] and the disproportionate impacts of plastic pollution on small island developing States;

   (e) [The use of the best available science and scientific information];

   (f) [The full, effective and meaningful engagement and participation of Indigenous Peoples and, as appropriate, the inclusion of local communities when taking action to address plastic pollution, including in the marine environment]; and

   (g) [The specific needs of developing country Parties arising from the adverse effects of plastic pollution and the impact of the implementation of response measures, including with respect to funding and the transfer of technology].

ARTICLE 3

DEFINITIONS

1. For the purposes of this Convention:

   (a) "Party" means a State or regional economic integration organization that has consented to be bound by this Convention and for which the Convention is in force;

   (b) "Regional economic integration organization" means an organization constituted by sovereign States of a given region to which its member States have transferred competence in respect of matters governed by this Convention, and which has been duly authorized, in accordance with its internal procedures, to sign, ratify, accept, approve or accede to this Convention.

ARTICLE 4

PLASTIC PRODUCTS

1. Each Party [should][shall] take measures, as appropriate, and in accordance with its national circumstances and capabilities, to [manage] [reduce or, where possible, phase-out or not allow the production and consumption of] plastic products that meet [one or more of] the following criteria:

   (a) Have a high likelihood of entering the environment and [causing pollution][existing waste management systems do not prevent such likelihood];

   (b) Pose an unacceptable risk to [human health or] the environment;

   (c) Are difficult to or not capable of being reused, recycled, composted, or redesigned to achieve reusability, durability, repairability and refurbishability;

   (d) Disrupt or inhibit the circular economy on a large scale;

   (e) [Contain a chemical or chemicals of concern to human health or the environment;] [or][and]

   (f) [Contain intentionally added microplastics in products that the Party has identified to pose a risk to the environment or to human health.]

2. In implementing paragraph 1 of this Article, each Party shall, as appropriate, take into account the following:

   (a) the necessity of the plastic product and its intended use;

   (b) the environmental impact, technical feasibility, affordability, availability, and accessibility of alternative products or methods;

   (c) best available scientific information and analysis;

   (d) the socio-economic impacts; and

   (e) where relevant, the incorporation of traditional knowledge, the knowledges, sciences and practices of Indigenous Peoples, and local knowledge systems.

3. [Any Party may submit to the Conference of the Parties a proposal for introducing measures under the Convention with respect to a plastic product or products [referred to in paragraph 1 of this Article] [in Annex X]. The proposal shall include information on:

   (a) Use, release and leakages, recycling, and waste disposal of the plastic product or products;

   (b) The risks posed by the plastic product or products, or chemicals of concern contained in plastic products to ecosystems and human health;

   (c) The control measures implemented by the Party on the plastic product or products;

   (d) The availability of economically and socially feasible substitutes and alternatives for the plastic product or products; and

(e) Other information for supporting the necessity of measures under the Convention.]

4. [The Conference of the Parties] [A subsidiary body [to be established by the Conference of the Parties at its first meeting, in accordance with Article 19]] shall consider the proposals submitted in accordance with paragraph 3 of this Article, taking into account scientific and other advice as appropriate, and decide on any measures under the Convention with respect to the plastic product or products concerned.

5. The Conference of the Parties shall establish and provide for the maintenance of an online platform to inform of measures Parties have taken to implement this Article. Once the platform is established, each Party shall aim to inform the Secretariat of any measures planned or in effect in connection with the implementation of this Article.

6. [The Conference of the Parties shall develop guidance to assist Parties [to address the most problematic plastic products] [in the implementation of the measures to be taken to implement this Article].]

7. [The Conference of the Parties shall consider the development of guidance or global cooperative action, as appropriate, taking into account the criteria and factors of paragraphs 1 and 2, scientific and socio-economic assessment, in order to support the Parties in implementation of this Article.]

8. Each Party shall report in accordance with Article 14 on measures taken to implement this Article.

ARTICLE 5

PLASTIC PRODUCT DESIGN

1. Each Party [shall][should], taking into account its national circumstances and capabilities, take appropriate measures to:

   (a) Improve plastic product design, in pursuit of circularity, including but not limited to resource efficiency and circular economy approaches, in order to:

      (i) Enhance the safety, durability, reusability, refillability, repairability and recyclability of plastic products;

      (ii) Minimize releases and leakages of plastic waste and plastic products, including microplastics, to the environment;

      (iii) Contribute to sustainable production and consumption of plastics by increasing resource efficiency.

   (b) Improve the availability of relevant information on materials and additives in plastic products to promote safety, circularity and environmentally sound management of plastic waste;

   (c) Foster research, innovation, development in plastic product design and use of alternatives and non-plastic substitutes, where appropriate, including products, technologies and services in pursuit of circularity, including but not limited to resource efficiency and circular economy approaches, taking into account, where relevant, the knowledges, sciences and practices of Indigenous Peoples, traditional knowledge and local knowledge systems.

2. The Conference of the Parties shall establish a process and schedule of work for the development of guidance or guidelines, as appropriate, to assist Parties in their implementation of this Article. The Conference of the Parties shall adopt and review such guidance and update it, as appropriate, at regular intervals.

3. In implementing paragraph 1 of this Article, Parties should take into account relevant international standards and guidelines, where appropriate.

4. Each Party shall report in accordance with Article 14 on measures taken to implement paragraph 1 of this Article.

ARTICLE 6

RELEASES AND LEAKAGES

1. Each Party shall, as appropriate, taking into account its national circumstances and capabilities, take measures to assess, prevent, reduce and, where possible, eliminate releases and leakages of plastics into the environment, including microplastics, where such releases and leakages contribute to plastic pollution, including measures on plastic pollution.

2. Parties should, as appropriate, cooperate in undertaking research to advance the prevention of releases and leakages of plastics into the environment.

ARTICLE 7

PLASTIC WASTE MANAGEMENT

1. Each Party shall take measures to ensure that plastic waste is managed in an environmentally sound manner, taking into account relevant guidelines on the environmentally sound management of plastic waste developed under the Basel Convention on the Control of Transboundary Movements of Hazardous Wastes and Their Disposal.

2. In implementing paragraph 1 of this Article, each Party shall, taking into account national circumstances and capabilities, take measures, including to:

   (a) Establish systems and disaster-resilient infrastructure at the national and subnational levels for the environmentally sound management of plastic waste [consistent with waste hierarchy];

   (b) Promote circular economy approaches;

   (c) Set targets at the national level to promote the collection and recycling of plastic waste;

   (d) Prevent littering, and prohibit open dumping, open burning and ocean dumping of plastic waste, taking into account internationally agreed rules;

   (e) Prevent and dispose of abandoned, lost, or otherwise discarded fishing and aquaculture gear containing plastic;

   (f) Prevent and minimize plastic waste, including by raising public awareness and promoting behavioural changes.

3. In circumstances where the Basel Convention on the Control of Transboundary Movements of Hazardous Wastes and Their Disposal does not apply, the Party in question shall, as appropriate, take measures to allow transboundary movement of plastic waste only after taking into account relevant international rules, standards and guidelines and any guidance developed in accordance to paragraph 5 of this Article.

4. Each Party shall take measures to establish or promote, within its national jurisdiction, the development of extended producer responsibility approaches, product circularity, or, as appropriate, other economic instruments serving the same purpose, taking into account the different roles of relevant stakeholders.

5. The Conference of the Parties, to support the implementation of this Article, shall establish programmes of work and develop guidance, including to improve implementation of this Article.

ARTICLE 8

EXISTING AND LEGACY PLASTIC POLLUTION

1. Each Party should:

   (a) Take measures to identify and evaluate the locations or accumulation zones most significantly affected by existing and legacy plastic pollution within its national jurisdiction, including in the marine environment;

(b) Cooperate, as appropriate, with other Parties, relevant international or regional organizations or other stakeholders to identify and evaluate the locations or accumulation zones most significantly affected by existing and legacy plastic pollution in areas beyond national jurisdiction;

(c) Take appropriate remediation measures, with respect to existing and legacy plastic pollution in such identified affected locations or accumulation zones[, [subject to and in accordance with] [taking into account] any guidance developed under paragraph 2 of this Article].

2. The Conference of the Parties may adopt guidance and establish a [relevant] [remediation] mechanism to facilitate the implementation of this Article.

ARTICLE 9

JUST TRANSITION

1. In implementing this Convention, each Party should, as appropriate and taking into account national circumstances and capabilities, promote and facilitate a just transition, in particular for those disproportionately impacted, with a view to promoting decent work, opportunities and livelihoods and enhancing social protection.

2. In taking measures to implement paragraph 1 of this Article, each Party should take into account, as appropriate, the situation of, and engage, workers in the formal and informal sectors, including workers in the plastics industry, waste pickers, small-scale and artisanal fishers, and those whose livelihoods depend on small-scale and artisanal fisheries, as well as disproportionately affected communities and groups.

3. Parties shall cooperate, as appropriate, in implementing this Article, including through knowledge exchange and capacity-building.

ARTICLE 10

FINANCIAL RESOURCES AND MECHANISM

1. Each Party [shall][should][undertakes to] [is encouraged to] [provide][mobilize], within its capabilities, resources in respect of those national activities that are intended to achieve the objectives of this Convention, [taking into account][in accordance with] national policies, priorities, plans, and programmes. [Such resources may include domestic funding through relevant policies, development strategies and national budgets, and bilateral and multilateral funding, as well as private sector investment and contributions, as appropriate.]

2. [The overall extent to which [developing country]Parties [and Parties with economies in transition] will effectively implement their obligations under this Convention will depend on the availability and accessibility of financial resources, capacity-building, technical assistance, technology transfer and international cooperation provided in accordance with this Convention.][The overall effectiveness of the implementation of this Convention [by developing country Parties] will be related to the effectiveness of financial resources, capacity-building, technical assistance, technology transfer and international cooperation in accordance with this Convention.]

3. The provision of support in accordance with the obligations set out in this Convention [shall][should] take into account the specific needs and circumstances of developing country Parties, in particular least developed countries and small island developing States, and Parties with economies in transition.

4. A mechanism for the provision of adequate, accessible, new, predictable, and timely financial resources is hereby established. The mechanism shall include:

(a) The Global Environment Facility Trust Fund; [and]

(b) A new dedicated multilateral fund[, hereby] established under this Convention[, hosted within an existing institution]; [and]

(c) a public-private coordination network to interface with the partnerships referred to in paragraph 8;

with [distinct] functions to be defined for each [entity] by the Conference of the Parties [at its first meeting].

5. The mechanism shall provide financial resources on a grant or concessional basis to meet the agreed [full] incremental costs, including for enabling activities, in support of the implementation of this Convention, including measures taken consistent with guidelines adopted by the Conference of the Parties, where relevant.

6. [Developed country Parties, [within their respective capabilities,] [shall][should take the lead in contributing][are invited to] [contribute] to the mechanism.] The mechanism [is able to receive resources from a wide variety of sources] shall encourage the provision of resources from other sources, including the private sector, and [shall seek to] leverage such resources for the activities that it supports.

7. To increase support for the implementation of this Convention, [Parties shall encourage regular] contributions from other sources, including other Parties, multilateral organizations, agencies and funds [are encouraged on a voluntary basis].

8. Parties [should][are encouraged to] also promote an enabling environment for private finance [and encourage][including through] public-private financing partnerships, [as appropriate,] with the aim of generating complementary and additional finance flows towards the achievement of the objective of the Convention.

9. For the purposes of this Convention, the above-mentioned entities shall operate under the guidance of and be accountable to the Conference of the Parties.

10. The Conference of the Parties and the entities comprising the mechanism shall agree upon, [at the first][by the second] meeting of the Conference of the Parties, arrangements to give effect to the above paragraphs of this Article.

11. The Conference of the Parties shall review, no later than at its third meeting, and thereafter periodically, the effectiveness and adequacy of the mechanism, and shall take appropriate measures in that regard. Such review should [consider existing financial flows including from domestic finance, bilateral, regional and multilateral entities, as well as the private sector][take into account the needs of developing country Parties].

ARTICLE 11

CAPACITY-BUILDING, TECHNICAL ASSISTANCE AND TECHNOLOGY TRANSFER, INCLUDING INTERNATIONAL COOPERATION

1. Parties are encouraged to cooperate to fulfil the objectives of this Convention. [Developed country] Parties should provide effective, timely and appropriate capacity-building, technical assistance and technology transfer [on voluntary and mutually agreed terms][on concessional and preferential terms] to assist [developing country Parties and Parties with economies in transition][developing country Parties experiencing fiscal constraints] in implementing their obligations under this Convention.

2. Capacity-building, technical assistance and technology transfer [on voluntary and mutually agreed terms][on concessional and preferential terms] under this Article may be delivered through regional, subregional and national arrangements, as well as through multilateral, bilateral and partnership approaches.

3. Parties are encouraged to cooperate to promote and facilitate, in collaboration with the private sector and other relevant stakeholders, as appropriate, the development, transfer and diffusion of and access to up-to-date, environmentally sound technologies relevant to addressing plastic pollution, to [developing country Parties and Parties with economies in transition][developing country Parties experiencing fiscal constraints].

4. Parties are encouraged to cooperate and coordinate, as appropriate, with relevant multilateral environmental agreements, intergovernmental organizations, scientific bodies, the private sector, and other stakeholders to facilitate the delivery of capacity-building, technical

assistance and technology transfer [on voluntary and mutually agreed terms][on concessional and preferential terms] [to] [developing country Parties and Parties with economies in transition][developing country Parties experiencing fiscal constraints]. Such cooperation should support the effective implementation of this Convention and the achievement of its objective, while avoiding duplication of efforts.

5. The Conference of the Parties, at its first meeting, shall make recommendations on how capacity-building, technical assistance and technology transfer could be further enhanced under this Article.

ARTICLE 12

IMPLEMENTATION AND COMPLIANCE

1. A [mechanism, including a] committee, is hereby established to facilitate the implementation of, and promote compliance with, the provisions of this Convention. The committee shall function in a manner that is transparent, facilitative, non-punitive, non-adversarial and expert-based.
2. The committee may consider issues on the basis of:
   (a) Written submissions from any Party with respect to its own compliance;
   (b) Requests from the Conference of the Parties[;
   (c) Information provided by the Secretariat with respect to national reports under Article 14].
3. The committee referred to in paragraph 1 of this Article shall examine [both]individual [and systemic] implementation and compliance issues.
4. The committee shall operate in accordance with the modalities and procedures adopted by the Conference of the Parties at its first meeting. The committee shall develop its rules of procedure, which shall be subject to approval by the Conference of the Parties.
5. The committee shall report periodically to the Conference of the Parties and make recommendations, as appropriate.

ARTICLE 13

NATIONAL PLANS

1. Each Party [shall][should] develop and endeavour to implement, taking into account respective national circumstances, a national plan that reflects the highest possible ambition, is based on the national needs, circumstances and capabilities of the Party and contains measures that it intends to take to implement this Convention. The first plan should be transmitted to the Conference of the Parties through the Secretariat [within three years after the entry into force of the Convention].
2. Each Party may at any time adjust its national plan in order to enhance the level of ambition of its actions, based on its national circumstances and capabilities.
3. In implementing paragraphs 1 and 2 of this Article, Parties should consult relevant national stakeholders to facilitate the development, implementation, review and updating of their national plans.
4. Parties are encouraged to collaborate and coordinate regarding the development and implementation of sub-regional and regional plans to facilitate the implementation of this Convention, as appropriate.
5. The Secretariat shall make national plans submitted by Parties pursuant to this Article publicly available.
6. The Conference of the Parties shall, at its first meeting, adopt guidance on the implementation of this Article.

ARTICLE 14

REPORTING

1. Each Party shall report to the Conference of the Parties on the measures taken to implement its obligations and as appropriate, other provisions under this Convention, including as outlined in the national plan referred to in Article 13.
2. Each Party [should][shall] include in its reporting information on the challenges and effectiveness of such national actions and measures, as well as data and information as appropriate and as available relevant to the obligations and commitments of the Convention.
3. The Conference of the Parties shall, at its first meeting, adopt the format and periodicity, modalities, and guidelines for national reporting referred to in paragraph 1 of this Article.
4. The Secretariat shall make national reports submitted by the Parties under this Article publicly available.

ARTICLE 15

EFFECTIVENESS EVALUATION

1. The Conference of the Parties shall regularly evaluate the effectiveness of the Convention. The first evaluation shall be undertaken no later than six years after the date of entry into force of the Convention and thereafter at intervals to be decided by the Conference of the Parties**.**
2. The evaluation shall be conducted on the basis of available scientific, environmental, technical, financial and socio-economic information, which may include:
   (a) The national reports referred to in Article 14;
   (b) Information and recommendations provided by the committee referred to in Article 12;
   (c) Other information the Conference of the Parties deems relevant, including the information referred to in Article 16.
3. The Conference of the Parties shall, at its first meeting, adopt the modalities for the evaluation referred to in paragraph 1 of this Article.

ARTICLE 16

INFORMATION EXCHANGE

1. All Parties are encouraged to facilitate the exchange of information in support of the objective of this Convention.
2. All Parties [are encouraged to] [shall] designate a national focal point for the exchange and communication of information under this Convention.
3. In exchanging the information referred to in paragraph 1 of this Article, all Parties are encouraged to utilize, as appropriate, an online platform to be maintained by the Secretariat.
4. All Parties are encouraged to learn from and build on existing processes, initiatives and networks to share knowledge and highlight successes, including examples of replication and scale-up of sustainable solutions.

ARTICLE 17

PUBLIC INFORMATION, AWARENESS, EDUCATION AND RESEARCH

1. Parties shall promote [and facilitate access to information,] public awareness, education and research related to [the potential adverse effects of] plastic pollution, [including risks to human health] [and its effects] relevant to the implementation of this Convention and shall promote, as appropriate, such efforts at the national, regional and international levels and cooperate, as appropriate, with relevant local and subnational governments, as well as intergovernmental and nongovernmental organizations [, recognizing the importance of international collaboration and cooperation in enhancing the understanding of, and access to, the relevant information and data].
2. Each Party shall promote and facilitate measures to raise awareness, improve understanding, and share information on voluntary and mutually agreed terms on the effects of plastic pollution, including by promoting public participation and public access to information.
3. Parties are encouraged, based on their [respective] national circumstances and capabilities, to advance scientific and technological research, development, innovation and cooperation[, to address plastic pollution] [with a view to developing strategies and policies to identify, assess, monitor and, where necessary, reduce, among others, the risks associated with plastic pollution, including on human health].
4. Parties shall, as appropriate, cooperate to strengthen, particularly in developing countries and countries with economies in transition, institutional, scientific and technical capacities, including through regional health networks to collect, analyse, and disseminate scientific data [as well as the knowledge of Indigenous Peoples] related to plastic pollution and its potential health implications in alignment with international standards and the best available science. [Parties shall address these challenges by mobilizing finance, technologies and innovations, as well as capacity building.]

ARTICLE 18

CONFERENCE OF THE PARTIES

1. A Conference of the Parties is hereby established.
2. The first meeting of the Conference of the Parties shall be convened no later than one year after the date of entry into force of this Convention. Thereafter, ordinary meetings of the Conference of the Parties shall be held every two years unless the Conference of the Parties decides otherwise.
3. Extraordinary meetings of the Conference of the Parties shall be held at such other times as may be deemed necessary by the Conference of the Parties, or at the written request of any Party, provided that, within six months of the request being communicated to the Parties by the Secretariat, it is supported by at least one third of the Parties.
4. The Conference of the Parties shall by consensus agree on and adopt at its first meeting rules of procedure and financial rules for itself and any of its subsidiary bodies, as well as financial provisions governing the functioning of the Secretariat.
5. [The Conference of the Parties shall make every effort to reach agreement on all matters of substance by consensus. If all efforts to reach consensus have been exhausted and no agreement has been reached, the decision shall, as a last resort, be taken by a three-fourths majority of the Parties present and voting, except as otherwise is provided for in this Convention. If no consensus is reached, decisions and recommendations under this Part shall be taken by a three-fourths majority of the Parties present and voting, before which the Conference of the Parties shall decide, by a two-thirds majority of the Parties present and voting that all efforts to reach consensus have been exhausted. Decisions of the Conference of the Parties on matters related to the implementation of Article 10 of this Convention shall be taken by consensus.]
6. [The Conference of the Parties shall adopt decisions on procedural matters by a majority of the Parties who are present and voting.]

7. The Conference of the Parties shall keep the implementation of the Convention under continuous review. It shall perform the functions assigned to it by this Convention and, to that end, shall:

   (a) Establish such subsidiary bodies as it considers necessary for the implementation of the Convention;

   (b) Cooperate, where appropriate, with competent international organizations and intergovernmental and non-governmental bodies;

   (c) Adopt decisions related to the implementation of the Convention;

   (d) Perform other functions identified in this Convention or as may be required for its implementation.

8. The United Nations, its specialized agencies and related organizations, as well as any State not a Party to this Convention, may be represented at meetings of the Conference of the Parties as observers. Any body or agency, whether national or international, governmental or non-governmental, that is qualified in matters covered by this Convention and has informed the Secretariat of its wish to be represented at a meeting of the Conference of the Parties as an observer may be admitted unless at least one third of the Parties present at the meeting object. The admission and participation of observers shall be subject to the rules of procedure adopted by the Conference of the Parties.

ARTICLE 19

SUBSIDIARY BODIES

The Conference of the Parties shall, at its first meeting, establish a subsidiary body or bodies to provide scientific and technical information, assessments and advice, to support informed decision-making by the Conference of the Parties, and to assist it in the assessment and review of the effective implementation of the Convention.

ARTICLE 20

SECRETARIAT

1. A Secretariat is hereby established.

2. The functions of the Secretariat shall be to:

   (a) Prepare and arrange for meetings of the Conference of the Parties, and its subsidiary bodies, and provide them with services as required;

   (b) Facilitate, upon request, assistance to Parties to support their implementation of this Convention;

   (c) Prepare and make available to the Parties such reports as may be requested by the Conference of the Parties;

   (d) Coordinate its activities, as appropriate, with the secretariats of other relevant international bodies and instruments;

   (e) Enter, under the overall guidance of the Conference of the Parties, into such administrative and contractual arrangements as may be required for the effective discharge of its functions;

   (f) Perform the other secretariat functions specified in this Convention and such other functions as may be determined by the Conference of the Parties.

ARTICLE 21

SETTLEMENT OF DISPUTES

1. Parties shall cooperate in order to prevent disputes and shall seek to settle any dispute between them concerning the interpretation or application of this Convention through negotiation or other peaceful means of their own choice.

2. When ratifying, accepting, approving or acceding to this Convention, or at any time thereafter, a Party that is not a regional economic integration organization may declare in a written instrument submitted to the Depositary that, with regard to any dispute concerning the interpretation or application of this Convention, it recognizes one or both of the following means of dispute settlement as compulsory in relation to any Party accepting the same obligation:

   (a) Arbitration in accordance with procedures to be adopted by the Conference of the Parties;

   (b) Submission of the dispute to the International Court of Justice.

3. A Party that is a regional economic integration organization may make a declaration with like effect in relation to arbitration in accordance with the procedure referred to in paragraph 2 (a) of this Article.

4. A declaration made pursuant to paragraph 2 or 3 of this Article shall remain in force until it expires in accordance with its terms or until three months after written notice of its revocation has been deposited with the Depositary.

5. The expiry of a declaration, a notice of revocation or a new declaration shall in no way affect proceedings pending before an arbitral tribunal or the International Court of Justice, unless the parties to the dispute otherwise agree.

6. If the parties to a dispute have not accepted the same means of dispute settlement pursuant to paragraph 2 or 3 of this Article, and if they have not been able to settle their dispute through the means mentioned in paragraph 1 of this Article within twelve months following notification by one Party to another that a dispute exists between them, the dispute shall be submitted to a conciliation commission at the request of any party to the dispute. The conciliation commission shall render a report with recommendations. Additional procedures relating to the conciliation commission shall be included in a decision to be adopted by the Conference of the Parties no later than at its second meeting.

ARTICLE 22

AMENDMENTS TO THE CONVENTION

1. Amendments to this Convention may be proposed by any Party.

2. Amendments to this Convention shall be adopted at a meeting of the Conference of the Parties. The text of any proposed amendment shall be communicated to the Parties by the Secretariat at least six months before the meeting at which it is proposed for adoption. The Secretariat shall also communicate the proposed amendment to the signatories to this Convention and, for information, to the Depositary.

3. The Parties shall make every effort to reach agreement on any proposed amendment to this Convention by consensus. If all efforts at consensus have been exhausted, and no agreement reached, the amendment shall as a last resort be adopted by a three-fourths majority vote of the Parties present and voting at the meeting.

4. An adopted amendment shall be communicated by the Depositary to all Parties for ratification, acceptance or approval.

5. Ratification, acceptance or approval of an amendment shall be notified to the Depositary in writing. An amendment adopted in accordance with paragraph 3 of this Article shall enter into force for the Parties having consented to be bound by it on the ninetieth day after the date of deposit of instruments of ratification, acceptance or approval by at least three-fourths of the Parties that were Parties at the time at which the amendment was adopted. Thereafter, the amendment shall enter into force for any other Party on the ninetieth day after the date on

which that Party deposits its instrument of ratification, acceptance or approval of the amendment.

ARTICLE 23

ADOPTION AND AMENDMENT OF ANNEXES

1. Annexes to this Convention shall form an integral part thereof, and, unless expressly provided otherwise, a reference to this Convention constitutes at the same time a reference to any annexes thereto.

2. Any [additional] annexes adopted after the entry into force of this Convention shall be restricted to procedural, scientific, technical and administrative matters.

3. The following procedure shall apply to the proposal, adoption and entry into force of [additional] annexes to this Convention:

   (a) Annexes shall be proposed and adopted according to the procedure laid down in paragraphs 1 to 3 of Article 22;

   (b) Any Party that is unable to accept an [additional] annex, except for Parties that have made declarations with regard to any [additional] annex in accordance with paragraph 4 of Article 26, shall so notify the Depositary, in writing, within one year from the date of communication by the Depositary of the adoption of such annex. The Depositary shall without delay notify all Parties of any such notification received. A Party may at any time notify the Depositary, in writing, that it withdraws a previous notification of non-acceptance in respect of an [additional] annex, and the annex shall thereupon enter into force for that Party subject to subparagraph (c) below. For a Party that has made a declaration in accordance with paragraph 4 of Article 26, the [additional] annex shall enter into force on the [ninetieth] day after the date it has deposited with the Depositary its instrument of ratification, acceptance, approval or accession with respect to such annex;

   (c) On the expiry of one year from the date of the communication by the Depositary of the adoption of an [additional] annex, the annex shall enter into force for all Parties that have not submitted a notification of non-acceptance in accordance with the provisions of subparagraph (b) above.

4. The proposal, adoption and entry into force of amendments to annexes to this Convention shall be subject to the same procedures as for the proposal, adoption and entry into force of [additional] annexes to the Convention set out in paragraph 3 of this Article. If an [additional] annex or an amendment to an annex is related to an amendment to this Convention, the [additional] annex or amendment shall not enter into force until such time as the amendment to the Convention enters into force.

ARTICLE 24

RIGHT TO VOTE

1. Each Party to this Convention shall have one vote, except as provided for in paragraph 2 of this Article.

2. A regional economic integration organization, on matters within its competence, shall exercise its right to vote with a number of votes equal to the number of its member States [accredited and present at the time of the vote] that are Parties to this Convention. Such an organization shall not exercise its right to vote if any of its member States exercises its right to vote, and vice versa.

ARTICLE 25

SIGNATURE

This Convention shall be opened for signature at [city], [country], by all States and regional economic integration organizations on [--], and thereafter at the United Nations Headquarters in New York from [--] to [--].

ARTICLE 26

RATIFICATION, ACCEPTANCE, APPROVAL OR ACCESSION

1. This Convention shall be subject to ratification, acceptance or approval by States and by regional economic integration organizations. It shall be open for accession by States and by regional economic integration organizations from the day after the date on which the Convention is closed for signature. Instruments of ratification, acceptance, approval or accession shall be deposited with the Depositary.
2. Any regional economic integration organization that becomes a Party to this Convention without any of its member States being a Party shall be bound by all the obligations under the Convention. In the case of such organizations, one or more of whose member States is a Party to this Convention, the organization and its member States shall decide on their respective responsibilities for the performance of their obligations under the Convention. In such cases, the organization and the member States shall not be entitled to exercise rights under the Convention concurrently.
3. In its instrument of ratification, acceptance, approval or accession, a regional economic integration organization shall declare the extent of its competence in respect of the matters governed by this Convention. Any such organization shall also inform the Depositary, who shall in turn inform the Parties, of any relevant modification of the extent of its competence.
4. In its instrument of ratification, acceptance, approval or accession, any Party may declare that, with regard to it, any [additional] annex and amendment to an annex shall enter into force only upon the deposit of its instrument of ratification, acceptance, approval or accession with respect thereto.

ARTICLE 27

ENTRY INTO FORCE

1. This Convention shall enter into force on the [90th] [120th] day after the date of deposit of the [50th][60th][97th] instrument of ratification, acceptance, approval or accession.
2. For each State or regional economic integration organization that ratifies, accepts or approves this Convention or accedes thereto after the deposit of the [50th][60th][97th] instrument of ratification, acceptance, approval or accession, the Convention shall enter into force on the [90th] [120th] day after the date of deposit by such State or regional economic integration organization of its instrument of ratification, acceptance, approval or accession.
3. For the purposes of paragraphs 1 and 2 of this Article, any instrument deposited by a regional economic integration organization shall not be counted as additional to those deposited by member States of that organization.

ARTICLE 28

RESERVATIONS

No reservations may be made to this Convention.

AGREED AD REFERENDUM

ARTICLE 29

WITHDRAWAL

1. At any time after three years from the date on which this Convention has entered into force for a Party, that Party may withdraw from the Convention by giving written notification to the Depositary.
2. Any such withdrawal shall take effect upon the expiry of one year from the date of receipt by the Depositary of the notification of withdrawal, or on such later date as may be specified in the notification of withdrawal.

AGREED AD REFERENDUM

ARTICLE 30

DEPOSITARY

The Secretary-General of the United Nations shall be the Depositary of this Convention.

AGREED AD REFERENDUM

ARTICLE 31

AUTHENTIC TEXTS

The original of this Convention, of which the Arabic, Chinese, English, French, Russian and Spanish texts are equally authentic, shall be deposited with the Depositary.

IN WITNESS WHEREOF the undersigned, being duly authorized to that effect, have signed this Convention.

Done at [--] on this [--] day of [--]

PLACEHOLDER: ANNEX

[**Annex X**]]